

Civilian Board of Contract Appeals (CBCA)

Electronic Docketing System (EDS)

Frequently Asked Questions

Below is a list of frequently asked questions. Please refer to the EDS User Manuals for further information and instructions. These manuals and other reference materials are available on the CBCA's website (<https://cbca.gov/howto/eds.html>) and from the "Help" menu at the top right corner of the EDS homepage (<https://eds.cbca.gov>).

EDS CASES AND PERMITTED USE

Types of Cases for EDS Filings

Q: For which types of CBCA cases must a user submit documents within EDS?

A: Initially, EDS will be used for cases filed pursuant to the Contract Disputes Act (CDA), 41 U.S.C. §§ 7101—7109, including appeals under the Equal Access to Justice Act (EAJA) and the Indian Self-Determination and Education Assistance Act (ISDA), and requests for arbitration under 42 U.S.C. § 5189a(d) of disputes between the Federal Emergency Management Agency (FEMA) and applicants for public assistance disaster funding.

Other cases will continue to be filed via email, consistent with the Board's Rules of Procedure, which can be found at <https://www.cbca.gov>.

Protected and Confidential Materials

Q: Can protected or confidential material be submitted in EDS?

A: Sometimes. Nonpublic material may be filed in CDA appeals using EDS only if the judge has issued a protective order in the case. If a judge has issued a protective order, it is the user's obligation to comply with all requirements. These obligations include, but are not limited to, properly identifying those documents that contain protected material, properly marking documents as protected consistent with the terms of the protective order, and filing redacted versions of filings containing protected material when required.

The EDS User Manuals contain instructions on identifying and accessing documents filed under a protective order. Only authorized users in a particular case can access protected material filed in the case. Thus, if a protective order has been issued for a case, parties not admitted to the protective order will not be able to access documents containing protected material.

Classified Material

Q: Can classified material be submitted in EDS?

A: No. A user intending to submit documents that include classified material, including a notice of appeal or request for arbitration, must contact the CBCA Clerk's Office at cbcaclerk@cbca.gov or (202) 606-8800 for instructions on how to file.

TECHNICAL ISSUES AND ASSISTANCE

Passwords – Frequency of Changes and Resetting

Q: How often do I have to reset my password? What happens if my password expires?

A: Users are required to update their passwords every 121 days. Failure to maintain a current password will result in the user's account being "locked." If an account is "locked," the user must reset their password before being able to access EDS. Instructions for how to reset user passwords are located in the EDS User Manuals.

Technical Assistance

Q: If I have a technical question or issue with EDS, where do I go for help?

A: After reviewing the User Manuals, users with questions of a technical nature can email eds.cbca@cbca.gov. Please do not contact the assigned Judge or Judge's Chambers to ask EDS-related technical questions.

EDS Filing Questions

Q: If I have a question about EDS filing requirements and procedures, where do I go for help?

A: After reviewing the User Manuals, users with filing-related questions can contact the Clerk's Office at cbcaclerk@cbca.gov or (202) 606-8800. Please do not contact the assigned Judge or Judge's Chambers to ask EDS-related filing questions.

GETTING STARTED

Eligibility for EDS Accounts

Q: Who can establish an EDS account?

A: Any representative of a party, grantee, agency, or entity authorized to participate in a case may register as an EDS User. A user will have access only to cases in which the user represents

a party in that particular matter or in which the user has been authorized to participate by the CBCA.

The CBCA has already established accounts for Agency Points of Contact (POCs). For assistance in maintaining these accounts and updating account information, Agency POCs should contact the CBCA at either cbcaclerk@cbca.gov or (202) 606-8800.

Manuals

Q: There are several User Manuals on the website. Which manual applies to me?

A: Federal Agency Points of Contact and Agency Representatives should use the Agency Point of Contact and Representative User Manual. All other parties and representatives should use the Non-Agency User Manual.

Dashboard

Q: If I am involved in more than one case before the CBCA, will I be able to see all of my cases at one time?

A: Yes. EDS provides each user with a dashboard listing all of the user's cases.

Customization

Q: Can I customize my settings within EDS?

A: Yes. The User Manuals provide guidance on the types of possible customizations, including how to modify a user dashboard and set up alerts.

DEADLINES, TIMING CONSIDERATIONS, AND EDS UNAVAILABILITY

Meeting Applicable Deadlines

Q: Is a user responsible for meeting deadlines when using EDS?

A: Yes. Due to the time required to create a user account, reactivate a locked or deactivated user account, and load and submit all required documents and information, users are advised to file new CDA appeals, requests for arbitration, and any time-sensitive filings in advance of any applicable deadlines.

Time of Filing

Q: When is a filing in EDS considered filed?

A: “Time of Filing” is the time recorded by EDS when a filing is successfully received by the EDS server. The time of filing will be reflected in the docket sheet’s “Date” field, which displays the Date Time Stamp (DTS) for each filing. The time of filing is the official time the CBCA uses to establish when a filing is made and whether the filing is timely. Submissions received through EDS at or after midnight (12:00:00 a.m.) Eastern Time are considered filed the next business day. The fact that EDS “accepts” a filing into the system does not make a filing timely or proper if not permitted by applicable statutes, regulations, or rules such as the CBCA’s Rules of Procedure.

EDS Unavailability

Q: What should I do if I am unable to load a file in EDS?

A: In the event that a user is unable to file a document in EDS due to a technical failure of EDS during business hours, please contact the Clerk’s Office for assistance at cbcaclerk@cbca.gov or 202-606-8800. The business hours of the Clerk’s Office are Monday through Friday, 8:00 a.m. to 4:30 p.m. Eastern Time, excluding Federal holidays or days when the Board is otherwise closed.

If a user cannot file a document in EDS outside of business hours, the user should send their document(s) to the Clerk’s Office by email at cbca.efile@cbca.gov and copy the opposing parties; the user should include an explanation of the circumstances that precluded the user from transmitting the document(s) through EDS.

EDS FILING REQUIREMENTS AND FILE ACCESS

File Format

Q: What file format is required for filings? Do the files need to be text-searchable?

A: Filings must be submitted as portable document format files (.pdf). Users should contact the CBCA at cbcaclerk@cbca.gov or (202) 606-8800 for instructions on seeking an exception to this rule. The CBCA strongly encourages users to file documents in which the text is searchable.

File Size and Total Upload Limits

Q: What are the size limits for each file? For each upload?

A: Each filed document may not exceed 20 megabytes (MB). Documents not meeting this requirement will be rejected. A user may upload multiple files simultaneously. The size restriction is 450MB per upload.

Rule 4 Appeal Files, Exhibits, and Supplements

Q: Should Rule 4 appeal files be submitted in EDS? How about large exhibits that are not part of the Rule 4 appeal file?

A: No. See below.

Rule 4 Appeal Files: Respondents may submit the Rule 4 appeal files via efile (at cbca.efile@cbca.gov), provided that: 1) there are no more than 10 total emails, each not to exceed 20 MB; 2) the index and each exhibit are separate PDF files; and 3) the PDFs do not contain embedded files and are not merged. Rule 4 appeal files may also be submitted through CBCA's Secure File Transfer Protocol (SFTP) method and by delivery of CDs, DVDs, and/or flash drives in-person or via courier, USPS, UPS, FedEx, or other delivery service. Submission of all appeal files shall be in accordance with the Board's Rules of Procedures, which can be found at <https://www.cbca.gov>. Further details on efilings are provided at <https://www.cbca.gov/howto/FilingDocuments.html>. The CBCA's SFTP submission guide can be found at <https://cbca.gov/howto/SFTPRule4SubmissionGuide.pdf>.

Non-Rule 4 Appeal File Exhibits Exceeding EDS Size Limitations: Parties with exhibits exceeding efile and EDS size limitations should contact the CBCA Clerk at cbcaclerk@cbca.gov or (202) 606-8800 for further guidance, including whether submission through the SFTP method is advisable.

NOTIFICATIONS AND SERVICE

Notifications of New Cases

Q: Will parties be notified when new cases are filed?

A: When a new CDA case or FEMA arbitration request is filed within EDS, EDS will: (i) create a new entry on the user's EDS dashboard; (ii) generate an e-mail notice to the Agency that a new case has been filed; and (3) transmit a copy to the filing party pursuant to the CBCA's Rules of Procedure. The filing party is still required to furnish a complete copy of its notice of appeal in CDA cases and request for arbitration in FEMA cases to the Agency, including all attachments. The CBCA's Rules of Procedure can be found at <https://www.cbca.gov>.

The e-mail notice will provide the Time of Filing. If the filing party does not receive a system-generated notice or see a new case entry on the EDS dashboard, the filing party should contact the CBCA Clerk at cbcaclerk@cbca.gov or (202) 606-8800.

Filing Notifications

Q: How are parties notified of filings? Does CBCA provide additional notice?

A: At the time a document is filed, EDS automatically generates a “Notice of Electronic Filing” and emails the notice to all users authorized to participate in a case. CBCA will not provide additional notice to the parties. It is a user’s responsibility to validate that its email settings allow for delivery and receipt of the CBCA’s “Notice of Electronic Filing.” If a user elects to opt out of receiving “Notices of Electronic Filing,” it is the user’s responsibility to review the case docket for any new filings.

Service

Q: Does EDS provide service of documents to other parties for me?

A: Partially. A filing party is still required to furnish the Agency with a complete copy of its notice of appeal in CDA cases and request for arbitration in FEMA cases, including all attachments. After these initial filings, a user fulfills its obligations to provide copies of subsequent submissions to other parties when it makes a filing through EDS.

RELATED CASES, MOTIONS FOR RECONSIDERATION, AND CLOSED/COMPLETED CASE ACTIONS

Related Cases

Q: Should related cases be filed together in EDS as a single case or be filed as separate cases?

A: Users should file related cases separately—that is, each as a new, separate case. The CBCA Clerk will assign each related case a distinct docket number. The CBCA will assess consolidation in the same manner for cases filed through EDS as the CBCA does for cases not filed through EDS. The CBCA’s Rules of Procedure can be found at <https://www.cbca.gov>.

Transmission of Files for Consolidated Cases

Q: If the cases have been consolidated, can I load a document just once for all cases?

A: Yes. After a judge has consolidated cases, the consolidated cases are linked within EDS such that a document loaded by a user in one case docket will appear in all of the consolidated cases.

Motions for Reconsideration or for Relief from a Decision or Order

Q: Can I file a motion for reconsideration or a motion for relief from a decision or order within EDS for either CDA and/or FEMA cases?

A: We answer this question separately for CDA and FEMA cases. The CBCA's Rules of Procedure referenced below can be found at <https://www.cbca.gov>. Note: The fact that EDS "accepts" a filing into the system does not make a filing timely or proper if not permitted by applicable statutes, regulations, or rules such as the CBCA's Rules of Procedure.

Contract Disputes Act cases: A party may file a motion for reconsideration or a motion for relief from a decision or order, when permitted by CBCA Rules of Procedure, by using the navigation menu in EDS. A motion for reconsideration of a final decision will be docketed separately and given a new docket number.

FEMA arbitrations: For FEMA arbitrations, "a panel may correct clerical, typographical, technical, or arithmetic errors. A panel may not reconsider the merits of its decision resolving an eligibility or repayment dispute." Thus, there is no opportunity for a party to file a motion for reconsideration or a motion for relief from a decision or order of a FEMA arbitration decision within EDS or otherwise.

Open and Closed Case Status

Q: What are the different case status categories?

A: On the case docket sheet, users can see two case status categories: Open and Closed. In CDA cases, the CBCA marks a case as Closed on a date after the appeal period has lapsed. In FEMA arbitration cases, the CBCA marks a case as Closed after a decision has been issued.

Note: The fact that EDS may "accept" a filing into the system does not make a filing timely or proper if not permitted by applicable statutes, regulations, and/or rules such as the CBCA's Rules of Procedure.